

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
FABIAN TORRES,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JORGE
TOBON, SERGEANT MARTIN TOCZEK, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.
----- X

AMENDED SUMMONS

Index No.: 152730/2013

The Basis of Venue is:
Location of Incident

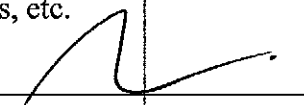
Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 16, 2013

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Detective Jorge Tobon, Detective Squad, 32nd Precinct, 250 West 135th Street, NY, NY
Sergeant Martin Toczec, Detective Squad, 32nd Precinct, 250 West 135th Street, NY, NY

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**AMENDED VERIFIED
COMPLAINT**

JURY TRIAL DEMANDED

Plaintiff, FABIAN TORRES, by his attorneys, Jacobs & Hazan, LLP, as and for his Amended Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 13, 2011, at approximately 6:55 a.m., plaintiff, Fabian Torres, while lawfully inside of his apartment located at 47-49 129th Street, New York, New York, was subject to an unlawful search, detention, false imprisonment and false arrest by the defendant New York City police officers. Thereafter, while at the 25th Precinct, plaintiff was subject to an unconstitutional strip search by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, caused the unjustifiable arrest of, and unlawfully strip searched plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Fabian Torres is a resident of the County of New York, State of New York.

3. Detective Jorge Tobon, was and is at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Detective Jorge Tobon is being sued in his individual and official capacity.
5. Sergeant Martin Toczec, was and is at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
6. Sergeant Martin Toczec is being sued in his individual and official capacity.
7. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
8. Police Officers John Does #1-10 are being sued in their individual and official capacities.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
13. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On November 3, 2011, at approximately 6:55 a.m., plaintiff was lawfully inside of his apartment located at 47-49 East 129th Street, Apt. 5C, New York, New York.

15. On November 3, 2011, at approximately 6:55 a.m., defendants unlawfully entered the apartment without probable cause or legal justification.

16. Plaintiff was showering at the time that defendants unlawfully entered his apartment.

17. Upon unlawfully entering the apartment, defendants entered the bathroom, physically removed plaintiff from the shower, and threw him unclothed onto the ground.

18. After defendants allowed plaintiff to put on shorts and a t-shirt, defendants then unlawfully handcuffed plaintiff, without cause or legal justification.

19. At no time were any guns, drugs, or contraband found in the apartment, or on plaintiff's person, or in plaintiff's possession, custody, or control.

20. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

21. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

22. Nevertheless, plaintiff was falsely arrested by the defendants and transported to the 25th precinct for arrest processing.

23. Upon arrival at the 25th Precinct, plaintiff Fabian Torres was placed in a holding cell by the defendants.

24. Defendant Police Officers then unlawfully stripped searched plaintiff Fabian Torres in a holding cell without reasonable suspicion or probable cause.

25. Specifically, plaintiff was forced to take off all of his clothes and shake each piece of clothing out.

26. Plaintiff was then ordered to turn around, and with his back facing the defendant police officers, plaintiff was forced to bend over and spread his buttocks.

27. Plaintiff was then ordered to face the defendant police officers and was forced to lift his genitals.

28. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

29. At approximately 10 a.m., after about 3 hours in custody at the 25th Precinct, plaintiff Fabian Torres was transported to Manhattan Central Booking.

30. At approximately 2 a.m., after approximately 14 hours in a holding cell at Manhattan Central Booking, a corrections officer called plaintiff's name and informed him that the District Attorney had declined to prosecute his case and that he was free to leave.

31. At the time that plaintiff was arrested, he was employed by the New York City Department of Education.

32. At the time that plaintiff was arrested, he was also employed by a private security company.

33. Plaintiff's employers were automatically notified of plaintiff's arrest.

34. Upon learning of plaintiff's arrest, the New York City Department of Education suspended plaintiff's employment without pay.

35. Plaintiff's suspension from the New York City Department of Education lasted for three weeks until he could provide documentation proving that the District Attorney had declined to prosecute his case.

36. During his three week suspension by the New York City Department of Education, plaintiff suffered approximately \$1200 damages in lost salary.

37. Upon learning of plaintiff's arrest, the private security company also suspended plaintiff's employment without pay.

38. Plaintiff's suspension from the private security company lasted approximately 3 months.

39. During his three month suspension by the private security company, plaintiff suffered approximately \$1600 damages in lost salary.

40. Upon returning to work at the private security company, plaintiff's boss no longer trusted him.

41. Upon returning to work at the private security company, plaintiff's boss subjected him to random drug testing.

42. Prior to his arrest, plaintiff had never been asked to take a drug test.

43. Plaintiff resigned from his position with the private security company approximately one month after returning from his suspension, because his supervisor no longer trusted him and because he felt uncomfortable.

44. The other individually named defendant police officers that were present at the scene of the incident failed to intervene to prevent the unlawful search and detention of plaintiff.

45. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiff.

46. The unlawful search, false arrest, and false imprisonment, of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

47. The unlawful strip search of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

48. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

49. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

50. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that "there is a '[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.'" Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

51. As a result of defendant City of New York and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct strip searches without reasonable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned, without probable cause in violation of plaintiff's right to be

free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution the State of New York.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the United States Constitution State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries

THIRD CAUSE OF ACTION

Unlawful Search

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

62. Defendants lacked probable cause to search plaintiff.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

67. Defendants failed to intervene to prevent the unlawful conduct described herein.

68. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. Plaintiff was searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

71. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

74. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002), as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

75. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

76. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

77. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

78. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched.

79. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

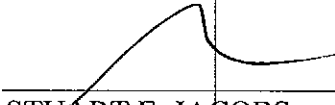
JURY DEMAND

80. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Fabian Torres demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 16, 2013

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

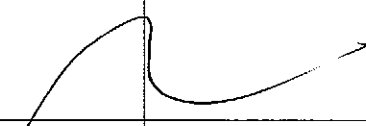
TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Detective Jorge Tobon, Detective Squad, 32nd Precinct, 250 West 135th Street, NY, NY
Sergeant Martin Toczek, Detective Squad, 32nd Precinct, 250 West 135th Street, NY, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

DATED: New York, New York
July 16, 2013



STUART E. JACOBS